

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN INDONESIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Indonesia, grounded in the environmental-permit and constitutional system and documented campaigns

This guide uses the Indonesian legal terms you will actually encounter (AMDAL, persetujuan lingkungan, gugatan warga negara, hutan adat, and so on), each defined on first use and in the Glossary. It describes the national framework; provinces and regencies have their own rules and authorities, so check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in parentheses right where you first meet it — no flipping to the back required.

TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
 2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
 3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step (the full visualization follows the five steps)
 4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who decides, when the decision is final
 5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
 6. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organise (Foundation → Public Launch → Coalition → Escalation)
 7. **STEP 4: LEGAL CHALLENGES** — Using the citizen lawsuit, strict liability, and consent
 8. **STEP 5: MEDIA STRATEGY** — How to generate coverage (journalist relationships, newsworthiness, measurement)
 9. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
 10. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers (honest mechanics and assessment)
 11. **WHEN IT'S ACTUAL CORRUPTION** — Spotting, documenting, and exposing genuine misconduct
 12. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
 13. **FINAL ASSESSMENT** — Realistic outcomes, when to continue, when to reassess
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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Indonesia. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In 2016, after years of resistance, the farmers of the **Kendeng** mountains — with the environmental organisation **WALHI** (the Indonesian Forum for the Environment, the national environmental network) — won a Supreme Court ruling cancelling the environmental permit for a cement plant, because they documented that the karst hills were the water source their farms depended on. The women who led that fight, who set their feet in wet cement outside the Presidential Palace, became known across the country. Across Indonesia, communities, environmental organisations, and ordinary citizens using the **citizen lawsuit** have forced projects to be refused, cancelled, redesigned, or delayed. These outcomes were not inevitable; communities made them happen.

But most communities don't know **HOW** to make opposition effective. They attend one public consultation, then give up. They assume "the office will refuse it" without building public pressure, filing objections, or going to court. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the Indonesian system.

If You're New to This — Don't Be Shy

Nobody is born knowing how an environmental assessment works. The communities in this guide weren't experts when the projects landed on them — they learned it, meeting by meeting, filing by filing, because the thing at stake was theirs.

That is the only qualification this work requires.

So if this is your first fight: don't worry, and don't be shy. You are allowed to file comments, demand documents, call reporters, and pack a hearing. The participation windows exist for you, not for specialists. You will make mistakes; every winning campaign did. Start small — one conversation, one document request, one meeting — and let the guide carry you from there. You want it? Go and get it.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

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STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (citizen lawsuit / administrative court)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: Indonesia gives communities a distinctive set of levers. An **environmental permit** (the **persetujuan lingkungan**, formerly the **izin lingkungan** (the earlier environmental permit (under UU 32/2009), challengeable in the administrative court — the Kendeng route, since reorganised by the Omnibus Law)) and the **AMDAL** (the environmental impact assessment) behind it can be challenged in the **administrative court (PTUN)** — the route that cancelled the Kendeng cement permit. A **citizen lawsuit (gugatan warga negara)** (a suit ordinary citizens can bring to compel the government to perform its legal duties to protect the environment) lets ordinary people sue the government to enforce the law, and environmental **organisations have their own standing** to sue. For serious pollution, the law imposes **strict liability** — the polluter is liable without the community having to prove fault. Uniquely, the environmental law says that a person **fighting for the right to a good and healthy environment cannot be criminally charged or sued** for it (an **anti-SLAPP** protection). And where a project touches a **customary forest (hutan adat)**, the Constitutional Court has recognised that it belongs to the **customary community**, not the state. No Indonesian campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the government is pushing investment and infrastructure, because the developer's own study drives the assessment, or because permits are rarely refused. In Indonesia this tilt was sharpened by a 2020 law (the **Omnibus Law**) that reduced environmental requirements — a point this guide returns to.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins cancellations, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, a bought permit, the offences under the anti-corruption law — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Indonesia, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Indonesia is a unitary state with substantial regional autonomy.

- **National government** — the **Ministry of Environment and Forestry (KLHK)** sets the framework, assesses the **AMDAL** and issues the **environmental approval (persetujuan lingkungan)** (the environmental permit a project needs, based on the AMDAL — the successor to the earlier *izin lingkungan*) for large or strategic projects, and controls forestry and (largely) mining permits. Business licences run through a central **Online Single Submission (OSS)** system.
- **Provincial government** — the **governor (gubernur)** and the provincial environment agency (**DLH**) assess the AMDAL and issue the environmental approval for many projects, and handle some permits.
- **Regency / city government** — the **regent (bupati)** or **mayor (walikota)** and the local DLH handle smaller projects, and control **spatial planning (RTRW)** and local permits.

So which body decides *your* project? - A cement plant, mine, power plant, dam, plantation, reclamation, or major road → an **environmental approval** based on an **AMDAL**, from the KLHK or the province/regency depending on scale, integrated into the business licence; plus (for mining) a mining permit and (for forest land) forestry approval. - Anything on a **customary forest (hutan adat)** or the land of a **customary community (masyarakat adat)** → their rights, recognised by the Constitutional Court, are engaged. - Anything in a **protected forest, conservation area, or coastal zone** → the relevant additional clearance.

The expert and assessment bodies

- **The AMDAL assessment team** (formerly the AMDAL Assessment Commission, *Komisi Penilai AMDAL*; now an **environmental-feasibility test team**) — evaluates the impact assessment and recommends the environmental approval.
- **The KLHK and the provincial/regency DLH** — the environmental authorities.
- **The courts, the Ombudsman, the audit board, and the anti-corruption commission** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the permit journey

For a project that may significantly affect the environment, the developer must obtain an **environmental approval (persetujuan lingkungan)** based on an **AMDAL** under the environmental law. The process runs roughly:

1. **Screening** — does the project need a full **AMDAL**, a lighter **UKL-UPL** (environmental management/monitoring effort), or neither?
2. **Public involvement** — affected people are announced and consulted, and there is a **public consultation (konsultasi publik)** where the community can raise objections. **Your objections should go in here, in writing, on the record.**
3. **Assessment** — the developer's consultant prepares the **AMDAL** (impacts, alternatives, mitigation), which the assessment team evaluates.
4. **Decision** — the environmental authority issues the **environmental approval**, integrated into the business licence.

A **weak or misleading AMDAL, a defective public consultation, or (on customary land) a violation of customary rights** are among the strongest grounds to stop or delay a project. The environmental approval — and the AMDAL behind it — can be challenged in the **administrative court (PTUN)**, as at Kendeng.

The rulebook — the laws that decide the outcome

- **The 1945 Constitution** — the right to a **good and healthy environment** (Article 28H) and the principle that natural resources are controlled by the state for the people's welfare (Article 33).
- **The Environmental Protection and Management Law (UU 32/2009)** — the framework: the AMDAL and environmental approval; **strict liability (Article 88)**; the **anti-SLAPP** protection (Article 66); and standing for citizens and organisations to sue.
- **The Omnibus Law (the Job Creation / Cipta Kerja Law, and its replacement, Law 6/2023)** — which reorganised and reduced parts of this system (see Section 10).
- **The Forestry Law and the Constitutional Court's customary-forest ruling (MK 35/2012)** — forest land, and the rights of customary communities to their **hutan adat**.
- **The Public Information Openness Law (UU 14/2008)** — the right to obtain government information.

Follow the money — why the system often leans toward “yes”

- **Provinces and regencies** compete hard for investment and the jobs and revenue a project brings, so there is often intense official pressure to approve.
- **National government** promotes mining, energy, plantations, and infrastructure, some designated **National**

Strategic Projects (PSN) with strong backing.

- **Developers** are often large companies, and — importantly — the **AMDAL is prepared by the developer’s own consultant**, so it tends to read in the project’s favour.
- Refusals are relatively rare; most projects that reach a decision are approved, with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The administrative court (PTUN)** and the general courts, up to the **Supreme Court** — review environmental approvals, hear **citizen lawsuits** and **strict-liability** claims, and can cancel a permit.
- **The Constitutional Court (Mahkamah Konstitusi)** — reviews laws, and recognised customary-forest rights.
- **The Corruption Eradication Commission (KPK)**, the **Ombudsman RI**, and the **Audit Board (BPK)** — the integrity bodies (see Section 11).
- **The Information Commission (Komisi Informasi)** — enforces the right to information.

The Clock — Every Deadline That Matters

The process runs on short, unforgiving windows, and one principle governs them all: **object early and comprehensively**. Arguments never placed in the participation record are far weaker later — points not raised in the public windows can be barred or discounted — so file everything, in every window, and keep every receipt. Confirm each figure below against the actual notice or with counsel the day it becomes relevant; notices set the live dates.

Stage	Your window	The trap
AMDAL public consultation	Short, set by the announcement — days , not months	File written input; oral objections evaporate
Administrative objection / appeal	Short once the decision is known — move immediately	Required thinking before the court route
PTUN (administrative court) suit	90 days from knowledge of the decision	Filing late is fatal to the claim
Interim relief	With the suit, before works start	After the forest is cleared, relief is moot
Information (KIP) request	Statutory clock in working days — file early	Denials go to the Information Commission — appeal them

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Indonesia, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a misleading **AMDAL**, a defective **public consultation**, a violation of **customary rights**, or serious pollution triggering **strict liability** — carried through the **administrative court** or a **citizen lawsuit** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (IDR)	What “Success” Means
Documentation Only	5-10%	3-4 months	Rp150 juta	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	Rp400 juta	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	Rp0-600 juta	Slow; strong if the defect is real
Media Only	10-15%	3-6 months	Rp150 juta	Public knows, but no action
Docs + Opposition	25-35%	12 months	Rp500 juta	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	Rp650 juta	Stronger legal arguments
Opposition + Legal	35-45%	12-18 months	Rp850 juta	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	Rp500 juta	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	Rp900 juta	Permit cancelled/refused/modified or project delayed

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: a **citizen lawsuit** and an **administrative-court** challenge can be brought at modest cost, and legal-aid institutes (**LBH**) and organisations such as **WALHI** and **ICEL** act for communities, often at no charge — so the “Legal” figures are not a hard floor.

STEP 1: TARGET IDENTIFICATION

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: “Environmental damage” But: “The quarry takes 200 hectares of karst hills that feed the springs and underground rivers [number] farming families depend on.”

Not: “Pollution” But: “The plant will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already exceeding the air-quality standard.”

Not: “Community harm” But: “The plantation clears the **customary forest** of [community] and cuts [number] families’ access to the forest they live from.”

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to a **customary forest**, a **karst** (a limestone landscape whose caves, springs, and underground rivers store and supply water — central to the Kendeng case) water system, a protected forest, or the coast also opens a **specific legal front** (customary rights; the forestry, water, or coastal laws; strict liability for serious pollution).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The KLHK** (national) — for the **AMDAL** and **environmental approval** of large/strategic projects, and forestry.
- **The provincial or regency DLH** — for the environmental approval of many projects.
- **The governor / regent** — who sign approvals and control spatial planning.
- **The customary community** — whose recognised **rights** are engaged on **hutan adat**.

Write it down concretely: “The provincial DLH will decide the environmental approval after the public consultation on [date]. The project is on customary forest, so the community’s recognised rights are engaged, and forestry approval from the KLHK is required.”

Question 3: What Specific Action Stops It?

Not: “Stop the project” But: “Persuade the authority to refuse the environmental approval, or defend the community’s customary land” — or, if refusal is unrealistic, “obtain strict conditions, real compensation, and a redesign.”

Not: “Protect the environment” But: “Show the **public consultation** was defective, the **AMDAL** misleading, or the **customary rights** violated, and challenge the permit in the **administrative court** or file a **citizen lawsuit**.”

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for a court to act.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **AMDAL** documents are out, the **public consultation**, the assessment, and the issue of the **environmental approval** and the business licence. Don't wait: object during the public consultation, and be ready to move to the **administrative court** quickly (a challenge to an administrative decision has a **short deadline once you know of it**).

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Is the project a **National Strategic Project (PSN)** (a project the national government designates as a priority, with strong political backing) or a big regional priority, hardening political backing? - Is the **AMDAL** prepared and paid for by the developer's own consultant only? - Does the province or regency depend on the project for jobs, revenue, or mining/plantation income? - Is the developer a large company with deep resources for studies, lawyers, and appeals? - Has the project begun works before the approval — presenting a *fait accompli*?

Why this matters: if strong “strategic project” backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on the **AMDAL**, the **public consultation**, and the **customary-rights** defects, on conditions, and on the **courts**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

The Three Documentation Layers

Documentation turns vague opposition (“This is bad”) into undeniable evidence (“This specific harm will occur to these specific people/places at these specific costs”). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: documentation of existing conditions BEFORE the project begins — including who lives on and uses the land, and how.

Why it matters: developers claim “the land is idle” or “already degraded.” Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.

Documented case — the Kendeng farmers and the Rembang cement plant

A cement company planned an 850-hectare plant and quarry in the **Kendeng** karst mountains of Central Java. Its supporters treated the hills as a limestone deposit and a source of jobs. The farmers made that impossible. Organised over years, and joined by the environmental organisation **WALHI** and a legal-aid institute, they documented what the karst actually was: a **water catchment** — the springs and underground rivers that fed their fields and their villages — and they argued the company's **AMDAL** had failed to reckon with it.

It changed the outcome. In October 2016, the **Supreme Court**, on a case review of a **citizen lawsuit** brought by the Rembang community and WALHI, **cancelled the environmental permit**, finding the company had not shown its plant would not harm the local water supply. The community's own documentation of the karst hydrology — of where the water came from, and who depended on it — was the thing the Court acted on. (Honesty matters here: after the ruling, the governor issued a **new** environmental permit, and the struggle continued — a reminder that a legal victory often has to be defended.)

Why it matters for you: the Kendeng farmers' documentation — of the karst as a living water system, and of the study's failure to assess it — was decisive. Documenting existing conditions, including human occupation, use, and the systems people depend on, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a

developer will claim the land is “idle” and baseline cannot be reconstructed later. A workable approach: surveys across at least a season cycle — more if you can — of the project area plus reference sites; a species and habitat inventory with GPS locations, flagging anything protected that the developer’s **AMDAL** omitted; a record of who occupies and uses the land — farming, fishing, gathering, sacred sites — and whether it is **customary forest (hutan adat)** or customary land (the basis of a rights claim); the **water systems** the community depends on (springs, rivers, karst — as at Kendeng); proximity to any protected forest or coast; and water and air baselines (quality and seasonal variation). Typical cost is around Rp150-200 juta for a technical consultant/ecologist, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just “something bad” but “specifically THIS BAD in THIS WAY” — and it maps directly onto what the **AMDAL** must properly assess.

Use the developer’s own words and the assessment rules. Powerful, documentable weak points in Indonesian assessments include: - **A misleading or incomplete AMDAL.** The **AMDAL** must genuinely assess the project’s significant impacts and alternatives. A study that omits or understates impacts — the water system, as at Kendeng — is a strong ground to cancel the permit. - **A defective public consultation.** The **public consultation** must genuinely involve affected people, with information available and objections recorded. A skipped or stage-managed process is a strong, specific defect. - **A violation of customary rights.** On **hutan adat** or customary land, the recognised rights of the **customary community** are engaged; ignoring them is a strong ground.

Convert each of the developer’s admissions (“temporary disturbance,” “limited clearing”) into a quantified prediction against your baseline.

Outcome (illustrative): an **AMDAL** or **public consultation** found defective, or **customary rights** violated, can lead the **administrative court** to cancel the environmental approval — adding months or years, or stopping the project.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. “X hectares affected” matters less than “an estimated 45 additional respiratory cases a year, and RpX of health-system cost” — or “the farming and water that sustain 200 families destroyed.”

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or land/water loss into health and livelihood outcomes, then attach costs — additional respiratory and cardiovascular cases, lost farming, fishing, and forest income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a regency or province, feed the court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage a technical consultant or ecologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND human occupation, use, customary status, water systems, and sacred sites.

Deliverable: a 20-30 page baseline report with species/habitat inventory, a record of use and rights, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **AMDAL** and the permit file (request them; the **information law** can help); identify specific impacts; test the study against the rules (completeness, public consultation, customary rights, water, forest). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer’s own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the permit.
 - **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the courts, and the public.
 - **No independent check.** A report the authority can dismiss as “activist material” is far stronger after an independent expert or a university reviews it.
 - **Ignoring the developer’s own admissions.** Their **AMDAL** is your best source; quote it against itself. Use the **information law** to get it and the file.
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Documentation Budget Breakdown (IDR)

Item	Cost	Notes
Technical consultant / ecologist (baseline + species ID)	Rp120 juta	Protected-species and habitat survey
GPS / survey equipment	Rp12 juta	Mapping/documentation
Water/air testing	Rp25 juta	Sampling across seasons
Independent / university expert review	Rp20 juta	Credibility
Printing/information-request/translation	Rp8 juta	Local-language copies for decision-makers
TOTAL	Rp185 juta	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Critical Insight About Organising

Most opposition campaigns fail not because they can’t build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don’t join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: “What’s your biggest concern about this project?” Listen — don’t pitch. Ask what they’d be willing to do. Each person has a different concern (land, water, farming, health, a sacred site, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern.: - **Land/livelihood group** — farming, fishing, forest income, displacement and compensation - **Water group** — the springs, rivers, karst, groundwater, contamination - **Health group** — air quality, dust, water-borne disease - **Rights group** — **customary forest** and **customary rights**, sacred sites Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Use Village and Customary Structures and Register an Organisation

Two vehicles matter. First, in villages and on customary land, the community’s own structures — the **village (desa)** institutions and, on **hutan adat**, the **customary community’s** own decision-making and recognised rights — carry weight; a clear, recorded community position against the project is one of the strongest things you can produce. Second, a **registered organisation (a yayasan or perkumpulan)** can speak for the community, receive donations, and — with environmental **organisations’ standing** — file a lawsuit; partner with established organisations (such as **WALHI** and legal-aid institutes) early.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (community gathering / *musyawarah*)

Hold a community gathering where people set out their concerns to themselves, to the village and regency officials, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in the **local language**. Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at markets, the village office, mosques and churches, health posts; post a digital version. Cost: ~Rp8 juta.

Step 2c: The Public Consultation and the Community's Recorded Position (the decisive record)

Two things matter most here. First, turn people out to **speak and file written objections at the public consultation** (and demand a proper one, in the local language, if it is skipped or held far away), each raising real grounds — a misleading **AMDAL**, harm to the water system or forest, ignored displacement. Second, secure the **records that carry weight**: a clear, formally recorded **community position** against the project, and — on **hutan adat** — a properly documented assertion of the community's recognised **customary rights**. Together these build a record the courts take seriously. Cost: ~Rp3 juta.

Step 2d: Media Coverage at Launch

Release data + objections + the recorded community position = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — **WALHI**, the **Indonesian Center for Environmental Law (ICEL)**, **legal-aid institutes (LBH)**, mining- and forest-watch networks (such as **JATAM**), and — on customary land — Indigenous-peoples' organisations (such as **AMAN**) — plus universities, religious bodies (which carry real weight in Indonesian communities), farmers' and fishers' groups, and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **WALHI / ICEL / an LBH**: "We need help challenging the AMDAL and permit in the administrative court, or filing a citizen lawsuit — can you assist?" - **A university group**: "Would your researchers assess the karst hydrology or health impacts independently?" - **AMAN / an Indigenous organisation**: "Help us document and defend the community's customary rights over its hutan adat." - **Farmers / fishers / religious leaders**: "This takes the land and water we depend on — will you object and speak at the consultation?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; customary land and rights to the customary community and an Indigenous organisation; livelihood to the farmers'/fishers' groups; media to whoever has the contacts; the legal track to the law group and the registered organisation. Sequence activities so each builds momentum (coalition launch → data release → recorded community position → public consultation).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (*aksi* / rallies)

Regular, same time and place, growing attendance — outside the regency or provincial office, the environment agency, or at the site. Handle logistics: the **notification the demonstration law requires**, marshals, accessibility, and a sound system for large gatherings. Momentum matters: “50 gather” becomes “gathering grows to 500.”

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (community position recorded → expert finding → coalition growth → rally → lawsuit filed).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator so volunteers don’t carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don’t often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that customary communities decide by their own processes — and be alert to developers trying to split a community by co-opting some leaders or staging a “consent”; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (community position recorded, 500 objections filed, a large rally, the lawsuit accepted) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (IDR)

Item	Cost
Factsheet printing (local language)	Rp15 juta
Website/phone/data (annual)	Rp10 juta
Meeting / venue costs	Rp20 juta
Outreach travel (often remote islands/uplands)	Rp70 juta
Objection/recording materials	Rp3 juta
Demonstration supplies (banners, sound)	Rp30 juta
Coalition meeting costs	Rp20 juta
Part-time coordinator honorarium (12 months)	Rp180 juta
Social-media / content (part-time, 3 months)	Rp45 juta
Fundraiser/event costs	Rp20 juta
TOTAL	Rp413 juta

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered organisation can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~Rp180 juta; and legal-aid institutes and organisations such as WALHI often act at no charge.

STEP 4: LEGAL CHALLENGES — THE CITIZEN LAWSUIT, STRICT LIABILITY, AND CONSENT

Plug these in — who fights beside you (many free of charge):

Legal help: - WALHI (the Indonesian Forum for the Environment) — *walhi.or.id* — the national environmental network that litigated Kendeng. - The **Indonesian Center for Environmental Law (ICEL)** — *icel.or.id* — public-interest environmental law. - **Legal-aid institutes (LBH)** and the LBH network (YLBHI); and, on customary land, **AMAN (the Alliance of Indigenous Peoples of the Archipelago)** — *aman.or.id*. - Mining- and forest-watch networks such as JATAM.

Transparency: the **Public Information Openness Law (UU 14/2008)** — request records from the public body's information officer (PPID); escalate to the **Information Commission (Komisi Informasi)** if refused.

The decision and the challenge: - The **environmental approval** and **AMDAL** via the **KLHK** (the Ministry of Environment and Forestry) or the provincial/regency **DLH**. - The **administrative court (PTUN)** and the general courts up to the **Supreme Court**; the **Constitutional Court** for laws.

Integrity and anti-corruption: the **Corruption Eradication Commission (KPK)** (kpk.go.id); the **Ombudsman RI** (ombudsman.go.id); the **Audit Board (BPK)**; the **anti-corruption court (Tipikor)**.

Rights and safety: the **National Human Rights Commission (Komnas HAM)** (komnasham.go.id) and human-rights organisations such as **Kontras**; report threats and criminalisation, document them, and seek protection and the anti-SLAPP protection.

- General or less specialised representation: 25-35%
- **A key advantage:** legal-aid institutes (**LBH**) and organisations such as **WALHI** and **ICEL** take these cases, often at no charge; and environmental **organisations have their own standing** to sue, so a community need not stand alone.

Indonesian legal strategy has three tracks. One important caution up front: the **Omnibus Law** (2020, later Law 6/2023) reorganised the licensing system and **narrowed the direct route** that once let communities challenge an environmental permit — so the exact procedure has shifted, and you should get **current advice** from an environmental lawyer on the right forum today. The tools below remain available; the packaging has changed.

TRACK 1: PARTICIPATION AND THE PAPER TRAIL (the front door)

Most fights are shaped here, on the record, before any court is involved.

- **Object at the public consultation.** Speak, and file written objections raising real **legal grounds** — a misleading **AMDAL**, harm to the water system or forest, ignored displacement, a consultation not held in the local language.
- **Record the community's position and customary rights.** A clear, formally recorded **community position** against the project — and, on **hutan adat**, a documented assertion of the community's recognised **customary rights** — carries weight.
- **Use the information law.** File requests under the **Public Information Openness Law (UU 14/2008)** to obtain the **AMDAL**, the permit file, and the correspondence; escalate to the **Information Commission** if refused. This turns a closed process into a documented one.
- **Lodge administrative objections.** Put your documented objections to the environmental authority and, where available, use the administrative objection/appeal channels before going to court.

Why this track matters: filing well — specific, on time, grounded in the law and the evidence — plus the information paper trail and the recorded community position, often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: THE AMDAL, CUSTOMARY RIGHTS, AND STRICT-LIABILITY LEVERS (the strongest cards)

Several grounds make this powerful.

- 1. A misleading AMDAL or a defective public consultation.** The **AMDAL** must genuinely assess the project's significant impacts and alternatives, and the **public consultation** must genuinely involve affected people. Where they do not — as at **Kendeng**, where the study failed to reckon with the karst water system — the environmental approval is vulnerable in the **administrative court**.
- 2. Customary rights over hutan adat.** The Constitutional Court has recognised that a **customary forest (hutan adat)** belongs to the **customary community**, not the state. Where a project takes such land, that recognised right is a strong ground — though, in practice, the community usually needs to be formally recognised (often through a regional regulation), so document and pursue that recognition.
- 3. Strict liability for serious pollution.** For activities involving hazardous or toxic materials or posing a serious environmental threat, the law imposes **strict liability (tanggung jawab mutlak)** — the polluter is liable for the loss **without the community having to prove fault**; you show the activity, the harm, and the causal link. This is a powerful civil lever once harm has occurred.

The anti-SLAPP protection. The environmental law says a person **fighting for the right to a good and healthy**

environment cannot be criminally charged or civilly sued for doing so. In practice this protection is unevenly applied — defenders are still sometimes prosecuted — so invoke it, document any retaliation, and get legal support early.

TRACK 3: THE ADMINISTRATIVE COURT, THE CITIZEN LAWSUIT, AND THE CIVIL COURTS

Indonesia offers several forums, and matching the tool to the goal matters: - **The administrative court (PTUN)** — to challenge and **cancel the environmental approval / licensing decision** as unlawful (the Kendeng route; confirm the current procedure with counsel after the Omnibus Law changes). - **The citizen lawsuit (gugatan warga negara)** — lets ordinary citizens sue the government to compel it to perform its legal duties to protect the environment. - **Organisational standing and class actions** — environmental **organisations** can sue in their own name to protect the environment, and affected people can bring a **class action** for damages. - **The civil courts and strict liability** — for compensation and restoration once harm has occurred, up to the **Supreme Court**.

Be realistic about two things. First, litigation **takes time**, and after the Omnibus Law the **procedural route has shifted** — get current advice. Second, and importantly, a **cancelled permit can be re-issued** after the defect is “cured”: at **Kendeng**, the governor issued a fresh permit after the Supreme Court cancelled the first. So an early win may need defending: keep opposition and media pressure alive alongside the case.

Legal Strategy Decision Tree

```
START: Is a public consultation or an environmental approval in process or issued?
├─ IN PROCESS → Object + record the community position / customary rights NOW (Track 1).
│               Use the information law.
├─ ISSUED      → Note the SHORT deadline to challenge an administrative decision once known.
│               Get current advice on the forum (the Omnibus Law changed the route).

Q1: What is the defect / harm?
├─ Misleading AMDAL / defective consultation / unlawful licensing decision
│   → ADMINISTRATIVE COURT (PTUN) to cancel the approval.
├─ Government failing its legal duty to protect the environment
│   → CITIZEN LAWSUIT (gugatan warga negara).
├─ Customary forest / customary rights → assert recognised rights (pursue formal
│   recognition); litigate via the appropriate forum.
├─ Serious pollution has occurred → CIVIL CLAIM using STRICT LIABILITY (no need to
│   prove fault) — often led by an organisation with standing.
├─ No real defect (lawful process, you just disagree) → focus on opposition + media.

Q2: Are you being SUED or prosecuted to silence you?
├─ Invoke the ANTI-SLAPP protection (a defender of the environment cannot be charged
│   or sued for it); document the retaliation; get legal support immediately.

Q3: Budget?
├─ Rp0          → Citizen lawsuit / organisational suit with an LBH, WALHI, or ICEL.
├─ Rp0-300jt    → Administrative or civil case with an environmental lawyer + expert evidence.
├─ Rp300-600jt → Full case + expert witnesses, combined with opposition + media.

RECOMMENDED PATHS
Path A — Clear defect: administrative-court challenge (or the right current forum) +
  Track 1 record + information file + media. Highest ceiling.
Path B — Arguable but not clear-cut: build opposition + media; take advice; litigate if a
  defect crystallises.
Path C — No legal defect: don't litigate. Win it politically, on the record, and in the press.
```

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A clear defect — a misleading **AMDAL**, a defective **public consultation**, or a violation of **customary rights** — can exceed these (as at Kendeng), though a cured defect may let the permit be re-issued.

A court that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Filing in the wrong forum after the law changed.** The Omnibus Law shifted the route — get current advice so you don't lose on procedure.

- **Missing the deadline.** A challenge to an administrative decision has a short window once you know of it.
 - **Weak grounds.** “This project is harmful” is an opinion, not a legal ground. “The AMDAL failed to assess the karst water system the villages depend on” is a ground a court can act on.
-

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Indonesia has a strong national press, a vigorous environmental-journalism sector, and very heavy social-media use, that cover exactly these fights — and a record of that coverage shifting outcomes. The Kendeng struggle became one of the country’s most high-profile land disputes on the back of a sustained social-media and mass-action campaign, which raised the political cost of pushing the plant through.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it’s happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don’t care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad:** “Residents oppose the project.” (no data, no specific consequence, nothing new) → ignored. - **Good:** “Information-law documents show the AMDAL never assessed the springs 300 families drink from; the community has filed a citizen lawsuit; the approval is with the governor now.” → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Local and community media** and **regional press** — the audience that reaches your regency and provincial officials.
- **National outlets** — *Tempo*, *Kompas*, *The Jakarta Post* — for projects with wider significance.
- **Environment and investigative outlets** — **Mongabay-Indonesia**, *Tirto*, and *Project Multatuli* — for deeper reporting on permits, mining, forests, and rights.
- **Social media** — powerful in Indonesia, and central to the Kendeng campaign — plus international outlets for landmark cases.

Building Reporter Relationships (The Key)

Reporters don’t ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, mining, land beats). **Contact** them first: “I saw your piece on [similar story]. We’ve got a similar situation in [place] and I think your readers should know.” Then keep the relationship warm over months — a relevant article, an information-law document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (public-consultation objections / recorded community position)
- Month 3: press event releasing the survey/information findings; expert available
- Month 4: coalition announcement
- Month 5: rally coverage
- Month 6: decision-date coverage

Real Media Dynamics (Indonesian grounding)

- **Coverage plus mobilisation shifts outcomes:** the Kendeng fight combined community organising, the karst documentation, and the citizen lawsuit with a sustained social-media and mass-action campaign that carried national weight.
- **Information-law documents make stories:** a disclosure that contradicts the developer’s claims — an AMDAL that ignored the water system, a stage-managed consultation — is a gift to a reporter and a court.

- **Independent evidence beats the developer’s study:** independent ecological, hydrological, or health analysis that contradicts an optimistic **AMDAL** lets the press write “experts dispute the developer’s figures,” and decision-makers take notice.

Plug these in — the outlets and desks that cover this beat:

Environmental and accountability media: *Mongabay-Indonesia*; *Tempo*; *Kompas*; *The Jakarta Post*; *Tirto*; *Project Multatuli*; and local and community media.

Media Measurement Track cumulative stories and reach month over month. Success indicators: regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. Failure indicators: no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.
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HOW THE FIVE STEPS COMPOUND

Now that all five steps are on the table, here is how they stack — and which ones carry the most weight when combined.

Effectiveness Visualization

SUCCESS PROBABILITY (Permit Cancelled/Refused/Modified/Project Shelved)

CLEAN DECISION SCENARIO:

All 5 Steps Combined:  65-75%

4 Steps Combined:  55-65%

3 Steps Combined:  45-55%

2 Steps Combined:  30-40%

Single Step:  5-20%

WITH MODERATE TILT FACTORS:

(Strong pro-investment push, or a developer-funded AMDAL)

All 5 Steps Combined:  40-45%

4 Steps Combined:  30-40%

3 Steps Combined:  20-30%

2 Steps Combined:  15-25%

Single Step:  3-12%

WITH SEVERE TILT FACTORS:

(A National Strategic Project, developer-only studies, heavy political backing)

All 5 Steps Combined:  25-30%

4 Steps Combined:  18-24%

3 Steps Combined:  12-18%

2 Steps Combined:  8-15%

Single Step:  2-8%

One important point: a single clear legal defect — most powerfully a misleading **AMDAL**, a defective **public consultation**, or a violation of **customary rights** — can lead the **administrative court** to cancel an environmental approval even where the politics favour the project, because it is applying a legal standard the authority cannot ignore. (A cancelled permit can be re-issued after the defect is “cured,” as happened at Kendeng — so an early win may need defending.)

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3)  25%

Why: creates political pressure, visible to decision-makers, enables other steps

2. DOCUMENTATION (Step 2)  22%

Why: provides ammunition for the courts and media; grounds opposition in facts

3. MEDIA STRATEGY (Step 5)  20%

Why: makes opposition/legal/documentation visible, creates political cost

4. LEGAL CHALLENGES (Step 4)  18%

Why: the administrative court and citizen lawsuit can cancel a permit — and hold the AMDAL and customary-rights levers

5. TARGET ID (Step 1)  15%

Why: foundation — if wrong, everything fails

Real insight: a large, organised, visible community that has also put well-argued objections on the record at the **public consultation** and, on customary land, asserted its recognised **rights**, is far more powerful than perfect documentation or a brilliant legal argument standing alone.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **information request (8E)** and the press release (8G) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the office] decides [date]

Dear [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [information-law documents / the community's recorded position / an independent survey] show [quantified finding – e.g. "the AMDAL never assessed the springs 300 families drink from"], and [the DLH / the governor] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / a customary community]), and time-sensitive (decision [date]).

I can share the full report and the documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Regards,

[Name] – [Organisation] – [phone] – [email]

8B. Letter to the KLHK, the DLH, or the governor/regent

Subject: [Refuse / attach strict conditions to] [project] – environmental approval [ref]

To [the KLHK / the Head of the Provincial or Regency DLH / the Governor / the Regent],

I am a resident of [place] writing about the [project], on which a decision (the environmental approval based on the AMDAL) is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "the AMDAL fails to assess the karst springs the villages depend on, and the project takes the customary forest of [community]"].

I am asking you to [specific, achievable action – e.g. "refuse the environmental approval," or "require strict conditions, real compensation, and a redesign"].

[If true:] The affected community has formally recorded its objection; [#] residents filed objections at the public consultation; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Respectfully,

[Name], [address], [phone], [email]

8C. Objection at the public consultation / recorded community position

PART A – WRITTEN OBJECTION (public consultation)

To: [the AMDAL consultant / the environmental authority], re [project]

Objection to the [project]. Consultation held [date].

1. Who I am: [name], [village], [interest].

2. Grounds (with evidence):

- a. [Customary land / rights] – the project takes the customary forest of [community]; their recognised rights are engaged. (Attach.)
- b. [Misleading AMDAL] – the study omits [impact], understates [impact], and [ignores] the water system / forest documented here.
- c. [Defective process] – the consultation was not held in [language] / affected people were not properly involved / objections were not recorded.

3. What I ask: that the environmental approval be REFUSED; alternatively, [strict conditions and a redesign].

[Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – RECORDED COMMUNITY POSITION (customary land)

"The [community], through its own decision-making, records that it OBJECTS to the [project] and does not consent to it on its customary land, for the following reasons: [rights / livelihood / water / sacred sites]. Recorded [date], [who was present / how decided]."

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Dear [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help us challenge the AMDAL and permit, or file a citizen lawsuit," or "help document and defend the community's customary rights," or "have your researchers assess the water impacts independently"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Organisation] – [contact]

8E. Public-information request (the transparency tool)

To: The Information Management Officer (PPID), [KLHK / the DLH / the LGU], [office]

Request under the Public Information Openness Law (UU No. 14/2008)

Please provide the following information concerning [project] (ref [ref]):

1. The AMDAL documents (and the UKL-UPL, if any) and the environmental approval.
2. The record of the public consultation and the objections received.
3. The business/licensing documents connected to the environmental approval.
4. For forest/mining: the forestry or mining permit and any customary-rights assessment.
5. The correspondence between [the authority] and [the developer], [dates].

If any information is refused, please give the legal basis; I reserve the right to bring a dispute before the Information Commission.

[Name] – [address] – [date]

8F. Legal challenge — administrative court / citizen lawsuit (get current advice)

NOTE: The Omnibus Law changed the licensing route, so CONFIRM THE CURRENT FORUM with an environmental lawyer or an LBH/WALHI/ICEL FIRST. Broadly: to cancel an unlawful environmental approval → the ADMINISTRATIVE COURT (PTUN), with a SHORT deadline once you know of the decision; to compel the government to do its duty → a CITIZEN LAWSUIT (gugatan warga negara); for damages after serious pollution → a CIVIL CLAIM using STRICT LIABILITY.

[CLAIM / PETITION – heading as advised by counsel]
[Date]

Plaintiff(s): [names / registered organisation with standing], [address].

Defendant(s): [the authority / the developer].

1. The decision or conduct challenged: [environmental approval [ref], dated [date] / the government's failure to protect the environment].
2. Grounds:
 - Ground 1 – [misleading AMDAL / defective public consultation].
 - Ground 2 – [violation of customary rights over hutan adat].
 - Ground 3 – [strict liability for the pollution caused].
3. Relief sought: [cancellation of the approval / an order to act / compensation and restoration]; and an interim measure to halt works if imminent.

[Name / counsel] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer "why now?"]
[Local organisation] released [study / information-law documents / the community's recorded position] today showing [specific finding] affecting [# of people / hectares / a customary community].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[The DLH / the governor] decides on [date].

[CALL TO ACTION] To support or file an objection: [how].
For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, information-law documents, the community's recorded position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the administrative court, the citizen lawsuit, strict liability, the anti-SLAPP shield, the current-forum caution after the Omnibus Law, and the budget branches.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the government is pushing investment and jobs, because the developer's own consultant writes the impact study, or because permits are rarely refused. It rarely means anyone broke the law. In Indonesia this tilt was deepened by law: the **Omnibus Law** (2020) reduced environmental requirements and narrowed the community's right to be heard. Here is how the tilt works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Indonesian dynamics and public policy — "National Strategic Project" backing, developer-funded **AMDAL** studies, rarely-refused permits, projects that begin before approval, and the Omnibus Law's rollback. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (jobs, revenue, mining and plantation income, **National Strategic Project** status); bias information (the **AMDAL** is commissioned by the developer, and reads optimistically); advantage well-resourced developers; and — through the **Omnibus Law** — reduce environmental permitting steps and narrow public participation and the community's ability to challenge a permit. **DOESN'T:** guarantee approval; make opposition impossible; remove the recognised rights over **hutan adat**; remove **strict liability**, the **citizen lawsuit**, or the **anti-SLAPP** protection; or prevent cancellations, conditions, and delay.

The Omnibus Law, specifically. The 2020 Job Creation (Cipta Kerja) Law amended dozens of statutes, including the environmental law: it folded the separate environmental permit into the integrated business licence, narrowed the steps and the public role, and reduced the direct route to challenge a permit in court. The **Constitutional Court** later found the law **conditionally unconstitutional** for how it was passed and ordered it revised; a replacement (**Law 6/2023**) followed. The practical lesson: the framework is more tilted than it was in the Kendeng era, so lead with the **AMDAL** substance, **customary rights**, **strict liability**, and the **citizen lawsuit**, and get current advice on the forum.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your

strategy has to be sharper and more visible, your legal grounds cleaner, and your information paper trail solid.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary permit with genuine scrutiny; no “strategic project” label; a clear legal defect; customary land or a documented water system engaged. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-investment push and a developer-funded **AMDAL**, but independent evidence is possible and a legal ground (AMDAL, consultation, customary rights) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the AMDAL and customary-rights defects.

RED FLAG (high tilt): a **National Strategic Project**, developer-only studies, heavy political backing, and works already begun. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest ground; build power and a record for the next round.

Direct Action and Defender Safety: Factual Information (Descriptive, Not Prescriptive)

When permit and legal routes are exhausted, some Indonesian communities have used non-violent direct action — rallies, road and site blockades, and occupations. This is descriptive of what has occurred, not guidance, and in Indonesia it comes with a serious safety warning.

Indonesia is dangerous for environmental defenders. Independent monitoring recorded **at least 13 environmental defenders killed between 2014 and 2023**, alongside many more instances of criminalisation, intimidation, and lawsuits. The killing of **Salim Kancil** — a farmer beaten and tortured to death in 2015 for organising against illegal sand mining in Lumajang, East Java — is a documented and infamous example. Defenders are also frequently **criminalised**, including under the **Electronic Information and Transactions (ITE) Law**, which has been used to prosecute activists for their statements. The environmental law’s **anti-SLAPP** protection (a person fighting for a good and healthy environment cannot be charged or sued) exists and has been upheld by the courts in some cases — but it is applied unevenly, and defenders are still prosecuted.

Anyone considering direct action — or even visible organising in a high-conflict area, especially over mining, sand, or plantations — should take the physical and legal risk with the utmost seriousness: don’t act alone; keep actions non-violent, lawful (give the notification the demonstration law requires), and well-documented; line up **legal support** in advance and invoke the **anti-SLAPP** protection if you are sued or charged; keep decisions transparent and collective so a developer cannot co-opt or split the community; and stay connected to legal-aid institutes, human-rights bodies (such as **Komnas HAM** and **Kontras**), and the press — visibility is a measure of protection. If you are threatened or criminalised, treat it as an emergency: report it, document it, tell your networks, and seek protection. Direct action has produced delay and attention in documented cases, but on its own rarely stops a project permanently; combined with documentation, customary rights, the courts, and media, it is more consequential — and safer.

A security-culture note — the aboveground/underground line. Security writers in the resistance literature draw one hard distinction that everyone weighing any form of action should understand. Everything in this guide — the filings, the coalitions, the hearings, the media work — is **aboveground** organizing, and it only works in the open: “There is no way to effectively do aboveground work and keep your identity hidden... Aboveground movements can only build numbers and public solidarity by being public, open, and expressing support of the movement” (dgrnewsservice.org/civilization/repression/an-introduction-to-security-for-activists-organizers-and-revolutionaries/). The same literature is equally blunt about the choice itself: “every person in a resistance movement must decide for her- or himself whether to be aboveground or underground. It is essential that this decision be made; to attempt to straddle the line is unsafe for everyone” (dgrnewsservice.org/resistance/organizational-structures-for-resistance-movements/). Whatever any individual decides, mixing the two modes endangers both that person and everyone organizing beside them — an aboveground campaign is safest, strongest, and most credible when it is exactly what it appears to be.

Honest Assessment

Where the system is tilted, opposition using permit and legal methods has lower odds of an outright stop — but still reliably wins cancellations or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the courts. And Indonesia offers genuine equalisers: the recognised rights over **hutan adat**, **strict liability** that shifts the burden to the polluter, the **citizen lawsuit** and **organisational standing**, the **administrative-court** route to cancel a permit, the **anti-SLAPP** protection, and the **information law**. Neither scenario makes opposition futile.

SECTION 10: WHEN IT’S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is rarer than ordinary bias, but where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. Indonesia has strong bodies to receive these matters — but handle them carefully, because getting the facts wrong exposes you to a defamation case.

How big is the problem? The most widely cited figure comes from the World Economic Forum: corruption costs at least **US\$2.6 trillion a year — about 5% of global GDP** — a figure cited before the UN Security Council. Because it is a percentage, the dollar amount grows with the world economy: applied to 2022 global GDP (~US\$101 trillion) it works out to roughly **US\$5 trillion a year**, and a January 2026 Baker Tilly analysis, with global GDP projected at ~US\$115 trillion for 2025, puts it at approximately **US\$5.75 trillion annually**. Roughly one dollar in twenty moving through the world's economy is lost to corruption — and infrastructure, land, and extractives are where it concentrates.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and abuse of office** (offences under the anti-corruption law, UU 31/1999 as amended) — money, jobs, or favours in exchange for a permit or a favourable decision, or a public officer abusing office for gain.
- **Bought permits.** Indonesia's anti-corruption commission has repeatedly convicted regional heads (governors, regents) and officials for **selling mining, plantation, and forestry permits** — the direct corruption of the very decisions this guide is about.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the developer, a family tie) who does not step aside.
- **The revolving door** — officials and the developer's staff or consultants moving between each other.
- **Improper gifts, hospitality, or campaign funding** flowing from a developer to the people deciding its project.
- **Falsified or manipulated studies** — an AMDAL with fabricated data, or a "consent" obtained by fraud or by dealing with unrepresentative leaders.
- **Insider land dealing** — acquiring affected land using non-public knowledge of a coming permit or spatial-plan change.

Red flags to watch for

- A permit granted despite officials' or the community's clear objection, with thin or shifting reasons.
- Sudden reversals, rushed timelines, or a permit issued quietly (or re-issued right after a court cancels it).
- An official who did not step aside despite a personal interest.
- Off-record meetings between the developer and decision-makers.
- Gifts, hospitality, trips, or campaign donations flowing from the developer to decision-makers or their families.
- A decision-maker — or a relative — owning affected land or an interest in the developer.
- The same small circle of firms, consultants, and officials recurring across permits.
- Records "missing," or requests refused under the information law.

How to document and investigate it (follow the money — carefully)

- **Information-law requests** for correspondence, minutes, contracts, and the permit file.
- **The Audit Board's (BPK) reports** on the agency or project.
- **Company and land records** — who owns the affected land and who profits; the company registry.
- **Wealth and campaign-finance records** — check for unexplained wealth or donations from the developer.
- **Minutes and technical opinions** — compare the decision to the officials' recommendation.
- **Build a timeline:** interest or donation → meeting, gift, or contract → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories — but protect their identities and be aware that exposing powerful interests carries real danger.

The legal lever: a tainted or arbitrary decision can be undone

Two features make this powerful. First, a permit granted through a process tainted by corruption or maladministration can be **annulled by the administrative court** as unlawful — you do not have to secure a criminal conviction first. Second, the offences under the anti-corruption law can be pursued by the **Corruption Eradication Commission (KPK)** and prosecutors before the **anti-corruption court (Pengadilan Tipikor)**. So documenting a tainted process can be both a **ground to undo the permit** and a matter for the anti-corruption bodies. (Be aware that the KPK's powers were reduced by a 2019 law revision — a reason to pursue the courts and the media in parallel, not to rely on any one body.)

Where to report it

- The **Corruption Eradication Commission (KPK)** — for serious corruption by officials.
- The **Ombudsman RI** — for maladministration in public services and permitting.
- The **Audit Board (BPK)** — for audit findings on public spending and revenue.
- The prosecutors and the police, and the **anti-corruption court (Tipikor)** — for the criminal offences.
- **Investigative outlets** (such as *Tempo* and Mongabay) — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can get the permit annulled; it flips media coverage from “local dispute” to “scandal”; it splits the political support behind the project; and it damages the developer’s reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it.**

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation and the ITE Law.** Publicly accusing a named person of a crime you cannot prove is legally dangerous in Indonesia, where the **ITE Law** (the Electronic Information and Transactions Law, whose defamation provisions have been used to criminalise activists’ statements) has been used against activists for online statements. Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the KPK / Ombudsman / BPK and the courts in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and yourself.** The danger is real; keep identities confidential and stay connected to legal and human-rights networks.
- **Don’t cry “corruption” without evidence.** Calling ordinary, lawful bias (Section 9) “corruption” destroys your credibility and can expose you to a case. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys, map customary land, water systems, and use (Step 2); convene the community and form or partner with a registered organisation (Step 3); file first **information-law** requests, prepare for the **public consultation**, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.

Months 2-3 — Public Launch: baseline complete; community gathering + objections at the public consultation + **recorded community position** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, objections and position on the record, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the **AMDAL** (Step 2); expand the coalition and bring in a law group and (on customary land) an Indigenous organisation (Step 3); prepare the **administrative-court / citizen-lawsuit** grounds — with current-forum advice (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/livelihood report (Step 2); sustained rallies (Step 3); the approval decision (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict conditions, quantified impacts, regional media.

Months 6-9 — Escalation + Challenge: rallies escalating (Step 3); file the **administrative-court challenge** or the **citizen lawsuit** (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning, and watch for a **re-issued permit** after any cancellation (Step 4); media momentum (Step 5). *Outcome:* permit + opposition + media + law compound; cancellation, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — “the AMDAL never assessed the karst springs the villages depend on,” not “we oppose the project.”
2. **Multi-tactic pressure** — objections + recorded position + customary rights + opposition + media + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; keep people safe.
4. **Documentation first** — build the evidence (including who lives there and the water systems), then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect customary communities’ own processes and guard against co-option.
6. **Use customary rights, strict liability, and the information law** — the recognised rights, the burden-shifting liability, and the paper trail are distinctively strong Indonesian levers.
7. **Get current-forum advice** — the Omnibus Law changed the route; don’t lose on procedure.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or cancellation is the bonus; expect works-ahead-of-permits and possible re-issue.
9. **Persistence and safety** — plan for 12-24 months (and possibly several forums), keep momentum, and protect organisers and whistleblowers.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving or being co-opted; no media coverage for 2-3 months; the case stalling or a permit re-issued after a cancellation; fundraising below half your target by month 6; a core organiser leaving without a successor; **threats, criminalisation, or intimidation** against organisers (treat as a safety emergency — see Section 9); or someone new pushing illegal or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Permit refused / project shelved** (rarer): usually needs overwhelming opposition + a strong AMDAL or customary-rights case + heavy media + lower tilt. Kendeng (permit cancelled by the Supreme Court) shows it happens — though it also shows a win can be re-fought.
- **Permit modified** (most common victory): strict conditions, genuine compensation and relocation, buffers, independent monitoring, redesign — often via the authority or a court.
- **Delay / attrition**: stalled for years while the permit and litigation run; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat**: the project proceeds (sometimes after a re-issued permit or a cured defect). Focus then shifts to enforcing conditions and rehabilitation, monitoring compliance, and the next opening.

Why It’s Worth It — Even If You Ultimately Lose

Be honest with your community about the odds — and equally honest about what the “secondary” outcomes are actually worth, because they are not consolation prizes:

- **Conditions and monitoring protect bodies for decades.** Buffers, emission controls, closure funds, independent monitoring with public data — these are measured in children’s health and the water people actually drink, for the life of the project. Every binding condition you force is future harm partially averted.
- **Delay is real harm avoided — and real leverage.** Every year a project stalls is a year the land and the livelihoods run — and delay compounds against the proponent: financing costs, aging forecasts, expiring permits, changing governments. Some “delayed” projects simply never come back.
- **The organization outlives the fight.** The coalition, the trained monitors, the relationships with lawyers and journalists — that infrastructure fights the next application, the next route, the next permit renewal. Communities that fought “losing” battles are the ones that win the next one.
- **You change the rules for everyone.** Campaigns in this guide lost projects and won statutes, precedents, and reformed procedures the whole country then uses. Fighting at the level of one project builds law at the level of all of them.
- **You raise the price of the next project.** A proponent that spent years and a fortune on your fight prices community resistance into every future plan — and sometimes walks away before starting. Deterrence is invisible and real.
- **Compensation and dignity are not nothing.** Where harm proceeds, documented communities win remediation, compensation, and terms silent ones never see — and a community that fought knows itself differently afterward. Agency, once exercised, doesn’t un-learn.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, the customary-rights and information record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months (and perhaps an administrative case and a citizen lawsuit) permit and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone — or if the personal or legal risk to organisers has become unacceptable. Ask: has opposition already won partial victory (conditions, compensation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Indonesia — even where investment, resource revenue, and “strategic project” politics point toward approval, and even after the Omnibus Law tilted the framework further. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers cancellations, conditions, compensation, delay, and durable power.

And Indonesia offers genuine equalisers: the recognised rights of **customary communities** over their **hutan adat**; **strict liability** that makes the polluter answer without the community proving fault; the **citizen lawsuit** and **organisational standing** that let people and NGOs sue; the **administrative-court** route that cancelled the Kendeng permit; the **anti-SLAPP** protection for those who defend the environment; and the **information law** that prises the file open. When a project truly cannot lawfully proceed, a court can cancel it — as at Kendeng, remembering that such a win must then be defended.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the anti-corruption bodies. Keep organisers and whistleblowers safe — the danger here is real. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

Nothing here is legal advice. The environmental, forestry, and licensing rules changed significantly under the Omnibus Law and its replacement, and deadlines and procedures vary — get current advice from an environmental lawyer or a legal-aid institute before relying on this.